

Tamil Nadu Jute (Control of Prices and Sales) Act, 1950

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State of Tamilnadu- Act

Tamil Nadu Jute (Control of Prices and Sales) Act, 1950

TAMILNADU

India

Tamil Nadu Jute (Control of Prices and Sales) Act, 1950

Rule TAMIL-NADU-JUTE-CONTROL-OF-PRICES-AND-SALES-ACT-1950 of 1950

Published on 21 April 1950

Commenced on 21 April 1950

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[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Jute (Control of Prices and Sales) Act, 1950

(Tamil Nadu Act V Of 1950)

Received the assent of the Governor on the 21st April 1950 and first published in the Fort St. George Gazette, dated the 25th April 1950.

An Act to provide for controlling the prices and sales of jute in the [State Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

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Whereas it is necessary to provide for controlling the prices and sales of jute in the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

; It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Jute (Control of Prices and Sales) Act, 1950.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force at once.

Notes. - This Act was extended to the Kanyakumari District and the Shencottah taluk of the Tirunelveli district by section 3 of, and the First Schedule to, the Tamil Nadu (Transferred Territory) Extension of Laws Act, 1960 (Tamil Nadu Act 23 of 1960) repealing the corresponding law in force in that territory.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context,-

(a)

"jute" means the fibre of any plant belonging to any species of the genus *corchorus* and commonly called pat, kosta, nalia or bimalipatam and includes the fibre of the plant *hibiscus cannabinus*, commonly called mesta;

(b)

"pucca bale" means a package containing any jute or jute cutting (whether containing any waste product or moisture or not) pressed by any hydraulic or power driven machinery and commonly known in the jute trade as a pucca bale;

(c)

"raw-jute" means jute which has not been subjected to any process of spinning or weaving and includes jute or jute cuttings whether loose or packed in bales or drums and whether containing any waste product or moisture or not;

(d)

"surplus raw jute" means raw jute in the possession or control of any person in excess of the quantity for which he holds for the time being a valid export licence under the Imports and Exports (Control) Act, 1947 (Central Act XVIII of 1947);

(e)

"waste product" means strippings, odd filaments or fragments droppings, sweepings or other waste products of jute, and includes articles commonly known in the jute trade as hiji biji.

3.

Maximum prices.

(1)

The State Government may, by notification in the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

, fix the maximum prices which may be charged for pucca bales, or for surplus raw jute (not being pucca bales).

(2)

Different maximum prices may be fixed under sub-section (1)-

(a)

for pucca bales, according to the quality, variety or trade description of the jute or jute cuttings contained therein; and

(b)

for surplus raw jute (not being pucca bales) according to the quality, variety or trade description thereof.

4.

Prohibition of sales and purchases at prices exceeding the maximum prices.

- No person shall sell, or agree to sell or offer to sell, and no person shall buy, or agree to buy, or offer to buy, any pucca bale or any surplus raw jute (not being a pucca bale) at a price exceeding the maximum price fixed therefor under section 3.

5.

Power of State Government to issue directions in respect of surplus raw jute.

- The State Government may, by order in writing, direct any person having any surplus raw jute in his possession or control, to sell such surplus raw jute or any portion thereof to any specified person or persons at a price not exceeding the maximum price fixed therefor under section 3.

6.

Power to require information, etc.

- The State Government may, by order-

(a)

require any person to give any information in his possession with respect to any business in jute carried on by him or by any other person;

(b)

authorize any officer to inspect any books or other documents belonging to, or under the control of, any person and relating to any business in jute, or cause any such books or documents to be inspected;

(c)

authorize any officer to enter and search any premises and seize any pucca bales or surplus raw jute in respect of which he has reason to believe that any provision of this Act has been, is being, or is about to be, contravened, or to cause such entry, search and seizure to be made.

7.

Delegation of powers.

- The State Government may authorize any officer to exercise any power conferred on them by section 5 or section 6.

8.

Penalties.

- Whoever-

(a)

contravenes any of the provisions of this Act or any order made there under, or

(b)

when required by any order made under clause (a) of section 6 to give any information, refuses or fails to give such information or gives any information which is false in any material particular and which he knows or has reason to believe to be false, or does not believe to be true, or

(c)

conceals, destroys, mutilates or defaces any book or document of the nature referred to in clause (b) of section 6, or

(d)

voluntarily obstructs any officer in the exercise of his powers under this Act,

shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

9.

Offences by corporations.

- Where a person committing any offence punishable under this Act is a company or an association or a body of persons, whether incorporated or not, the director, manager, secretary, agent or other principal officer managing the affairs of such company, association or body shall be deemed to be guilty of such offence.

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